

HOUSE No. 4004



MAURA T. HEALEY
GOVERNOR

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KIMBERLEY DRISCOLL
LIEUTENANT GOVERNOR

April 1, 2025

To the Honorable Senate and House of Representatives,

Pursuant to the provisions of Article II, Section 8, Paragraph 1, Clause (2) of the Amendments to the Constitution, as appearing in Article LXXXIX of said Amendments, I am filing for your consideration the attached legislation entitled “An Act Validating the Results of the Special Election Held in the Town of Hardwick on January 18, 2025.”

I am filing this special legislation at the request of the Town of Hardwick’s Select Board.

The legislation ratifies all acts and proceedings taken by the Town at its special election held on January 18, 2025. The ratification serves to resolve any question that might arise from the fact that the election was inadvertently held more than ninety days after the October 17, 2024, town meeting at which the preceding Proposition 2 ½ borrowing authorization and appropriation vote was adopted. Through the ballot question, the voters of Hardwick approved a debt exclusion for an \$860,000 bond to pay for the costs of a new fire truck. Hardwick’s current fire truck is thirty-seven years old, past the end of its useful life. The Town has already contracted for a replacement, which is ready for delivery.

Although the election was inadvertently held three days after the statutory deadline, the Town otherwise complied with all statutory requirements. Timely ratification of the results of the election is necessary to permit the Town to proceed with issuing the bond and purchasing a new fire truck. I therefore urge your prompt consideration of this bill.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "M. T. Healey", with a stylized flourish at the end.

Maura T. Healey,
Governor

HOUSE No. 4004

Message from Her Excellency the Governor (under Section 8 of Article LXXXIX of the Amendments to the Constitution) recommending legislation validating the results of the special election held in the town of Hardwick on January 18, 2025.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act validating the results of the special election held in the town of Hardwick on January 18, 2025.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law or town bylaw or charter
2 provision to the contrary, all acts and proceedings taken by the town of Hardwick at the special
3 election held on January 18, 2025, and all actions taken pursuant thereto, are hereby ratified,
4 validated and confirmed to the same extent as if the town had complied with the statutory
5 requirement to conduct the election no later than 90 days after the date of the close of the town
6 meeting at which an appropriation vote was adopted.

7 SECTION 2. This act shall take effect upon its passage.